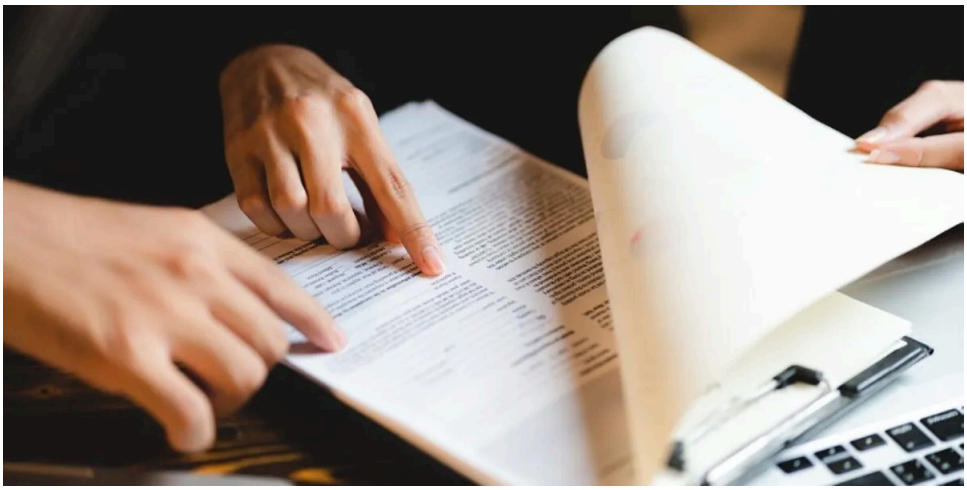
Licence agreement

Nokia and Apple renew ‘multi-year’ 5G patent licensing agreement

Mobile communication companies Nokia and Apple have announced the completion of a 5G licence agreement, which begins in January 2024 and is likely to continue the terms of a previous licence signed in 2017. The patent licence agreement renewal means both companies have more capacity to continue pursuing major litigation battles in Europe, and across the world.

3 July 2023 by Amy Sandys

Licensing deals



Apple and Nokia have signed a new licensing agreement, effective from January 2024, which covers 5G patents and related technologies. ©chokniti/ADOBE STOCK

In signing a new licence agreement starting from January 2024, Nokia and Apple have extended a previous agreement which is set to expire at the end of this year. Under the agreement, which covers Nokia’s 5G inventions as well as other technologies, Apple will make payments to Nokia. Both companies are keeping the terms confidential.

The companies did not engage in litigation, unlike prior to their previous licensing agreement which began in 2017. As reported by JUVE at the time (here,

in German), Nokia filed infringement lawsuits against the iPhone manufacturer in eleven countries. In Germany alone, Nokia sued for 14 patents in the regional courts of Düsseldorf, Mannheim and Munich. It also filed an eight-patent complaint with the US Trade Commission, demanding a ban on the import and sale of various Apple devices, including the then-latest iPhone and iPad models. However, the agreement ended this litigation.

Nokia's licensing record

Jenni Lukander is president of Nokia Technologies. In a press release, she says, "We are delighted to have concluded a long-term patent licence agreement with Apple on an amicable basis. The agreement reflects the strength of Nokia's patent portfolio, decades-long investments in R&D, and contributions to cellular standards and other technologies."

However, both companies have major patent portfolios and expansive licensing agreements in place with other companies. According to the Nokia website, the company owns over 20,000 patent families in the telecommunication sector. Of these, 4,500 contain patents considered essential to the 5G standard, with the patents particularly covering video compression technology. Nokia has recently concluded licensing agreements with other companies.

For example, in January 2023, Nokia and Samsung concluded discussions to extend their 5G cross-licensing agreement. This expired at the end of 2022 after four years. In June 2021, Nokia and Daimler also announced the conclusion of a licensing agreement for the use of Nokia's mobile patents by the German carmaker. This settled the companies' global patent dispute over connected cars technology, in doing ending a pending FRAND case before the CJEU.

Apple secures one more

Apple is less forthcoming about its exact patent ownership, although according to European Patent Office data, the company is listed as the applicant for over 26,000 patents. Apple's most recent public licensing agreement came in December 2022. Just before Christmas, the US company signed a global patent licence agreement with Ericsson, thus ending one of the largest disputes over implementation patents and SEPs in recent years.

The agreement covered a global cross-licence for patented cellular standard essential technologies, as well as granting certain other patent rights. The case was multi-jurisdictional and involved several law firms from, among others, Germany, the Netherlands and the UK. However, both Nokia and Apple are currently involved in widespread litigation with other parties globally.

The battles rage on

For example, Nokia is currently battling Oppo over the extension of a licence agreement for standard essential patents. For almost two years, the two companies have faced each other in patent courts around the world. Most recently, at the end of June, the Regional Court Mannheim heard a case regarding Oppo's EP 3 672 346 B1. According to JUVE Patent sources, the court dismissed the case after 20 minutes on the basis of non-infringement. Oppo initially began proceedings against Nokia in 2021, with courts in the UK, the Netherlands, Germany and Brazil all hearing cases over various SEPs.

Furthermore, in April 2023, the Regional Court Mannheim confirmed that Chinese smartphone retailer Vivo infringed three Nokia standard essential patents. This resulted in the court granting the latter an injunction against Vivo. According to JUVE Patent sources, current litigation came about due to the parties being unable to decide on a new licence agreement regarding 5G technologies. A previous agreement, where Vivo paid Nokia for use of its patented technologies, expired in December 2021. This had covered 2G and 3G technology.

Apple is currently going head-to-head with Optis in the UK, with the country's High Court last month handing down its sixth judgment in the dispute concerning SEPs. In doing so, the court cemented the terms of a FRAND licence between the two companies. JUVE Patent is not yet aware if Optis will appeal.